HEADNOTE

"1. A claimant is required to indicate the extent to which revocation of the patent is requested and is required to sufficiently substantiate this request for each of the claims covered by its request (see R. 25.1(a)-(d) RoP).
2. It follows from R. 29A(c) RoP that where the patentee requests that claimant's request for revocation of several or all claims of the patent is rejected, he is required (whether or not as a subsidiary defence) to identify in a sufficiently substantiated manner which dependent claims it considers to be valid should the independent claim be held invalid (see R. 29A(a)-(c) RoP).
3. If the patentee wishes to rely on a combination of dependent claims that does not directly and specifically follow from their wording, such as where the dependent claims rely on several or even any of the previous claims, the patentee should clearly indicate which combination(s) it considers to be valid, (also) in the language of the patent, should the independent claim be held invalid.
4. It follows from the principles of due process – in a similar manner as provided for in R. 30.1 (c) RoP – that the number of such combinations that the patentee wishes to rely on must be reasonable in number, considering the circumstances of the case.
5. R. 30 RoP does not require that the patentee submit an auxiliary request as a prerequisite for defending dependent claims. An Application to amend the patent is only required if the patentee wishes to maintain its patent with amended wording, i.e. deviating from the wording of the claims as granted, or proposes combinations of dependent claims not explicitly included therein, thereby limiting the scope of the patent as granted. This is not the case where a patentee merely defends the dependent claim(s), including combination(s) already encompassed thereby.
6. If there is no pointer to combine a reasonable starting point with another document, a motivation to take the next step in the direction of the invention cannot be derived from the content of such a combination document itself. Failing a motivation for the skilled person to consult a document it will not

> *become aware of its content, and it cannot be concluded that the skilled person would implement the missing feature disclosed therein.*
> *7. It is not appropriate and proportionate to impose a penalty in case of non-fulfilment of an enforceable monetary obligation.*
> *8. A publication of an own declaration by the infringer on its webpage pursuant to Art. 80 UPCA is justified only in the event of special circumstances which call for such a publication as corrective measure due to ramifications of an infringement which cannot be undone or sufficiently compensated otherwise."*

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Counterclaim for revocation

PATENT
EP 3 476 616

Planographic printing plate original plate, method for manufacturing planographic printing plate, and printing method

KEYWORDS
reliance on dependent claims | novelty | inventive step | direct and indirect infringement | private prior use | international jurisdiction | remedies

Rule 25 Counterclaim for revocation

SUMMARY
The Court of Appeal Luxembourg ruled on a counterclaim for revocation. The patents at issue relate to planographic printing plate original plate, method for manufacturing planographic printing plate, and printing method. According to the headnotes of the decision, a party requesting revocation of patent claims must clearly specify which claims it seeks to revoke and provide sufficient evidence to support each request. When a patent owner defends against such a request, they must identify which dependent claims they consider valid if an independent claim is found invalid. If a patent owner wishes to rely on combinations of dependent claims that are not directly stated in the patent language, they must explicitly identify these combinations and clearly explain them. The court confirmed that the number of claim combinations a patent owner may defend must be reasonable given the circumstances of the case. An amended application is required only if the patent owner wants to change the wording of the claims or propose new combinations not already covered by the granted claims; merely defending existing dependent claims requires no amendment. In assessing inventive step, the court held that a skilled person cannot be expected to consult a reference document unless there is a clear reason to do so, and the motivation to combine documents must come from within the prior art itself rather than from hindsight. Finally, the court determined that imposing a financial penalty for failing to meet a monetary obligation is not an appropriate or proportionate remedy in patent cases.